

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 20-016
Amendments to Title 16, Chapter 6 of the Chickasaw Nation Code
(Impeachment)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature enacted Title 16, Chapter 6 through the passage of TL11-001 on October 18, 1993 which was amended by Permanent Resolution PR18-021 on March 19, 2001, and

WHEREAS, the Tribal Legislature desires to amend Sections 16-608 and 16-610 to accurately reflect position titles provided by Amendment V to the Constitution and for other purposes.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Chapter 6 of the Chickasaw Nation Code; all other sections of Title 16, Chapter 6 shall remain the same (additions and case changes are shown in red and deletions are stricken through:

“SECTION 16-608 **PETITION VERIFICATION PROCEDURES.**

A. Upon receipt of the petition, the ~~judges of the tribal~~ Court shall set a meeting date, place and time to review the petition.

B. At the appointed date, time and place for the review of the petition, the Court ~~judges~~ shall:

1. once the charge(s) for which impeachment is/are sought has/have been found to be valid in accordance with Article XVI, Section 1 of the Constitution, the Court ~~judges~~ shall then tabulate the number of signatures obtained for the impeachment petition, identifying from such count all signatures or names which appear more than one (1) time on the petition forms;

3. once the Court ~~has judges have~~ determined that sufficient numbers of resident registered voters residing within the district or area from which the official was elected have signed the petition forms, they shall provide the petition forms to the

Chickasaw Nation Election Commission, which shall then verify each and every signature to the petition forms. The same method for determining validity of signatures for tribal elections shall be utilized to verify signatures of petitions. The Election Commission shall have fifteen (15) working days in which to perform the task. Once this task is completed, the Election Commission shall provide the Court with the number of signatures verified as correct and legitimate; the number of signatures which were determined to be invalid; the number of registered resident voters in each of the legislative districts for which petition forms were submitted to them; and the number of valid signatures certified as such by the Election Commission for each legislative district for which petition forms were submitted to them;

SECTION 16-610

PETITION VALIDATION PROCEDURES.

B. Once a petition seeking the impeachment of an elected official has been filed with the Court and certified as containing the appropriate number of signatures by the Chickasaw Nation Election Commission, the Judicial Department shall schedule a special hearing with the circulator(s), at which all three (3) Justices judges shall be in attendance. At that meeting, the circulator(s) shall provide evidence to substantiate their charges in accordance with requirements which shall be established by the Court, including all proof or evidence to substantiate the claims of the circulator(s) regarding the actions of the elected official.

C. Upon conclusion of that special hearing, the three Justices judges shall vote to determine the validity of the charges. Upon an affirmative vote in support of the petition by at least two of the three (3) Justices judges, formal impeachment charges shall be drawn up by the Court and submitted to the Chairperson of the Legislature, unless it shall be that official against whom charges shall be pressed, in which case the Court shall present the articles of impeachment to the Secretary of the Legislature. The articles of impeachment shall be presented in the format of a petition as utilized by the Court, and shall include a copy of the petition as filed and all signatures affixed thereto, a certified statement from the Chickasaw Nation Election Commission providing the names of those citizens whose signatures were found by the Commission to be valid, the date and time that the petition was received by the Court, and the date and time that the petition was determined to be valid by the Court, along with the Court's findings regarding the validity of the impeachment of charges as contained in the petition. The articles of impeachment shall state the offense in office with which the elected official is being charged and, should there be more than one such charge, each shall be stated separately.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 20, 2003, by a vote of 12 ayes, 0 nays, 0 abstentions.

Wanda Blackwell Scott

Chairperson

Chickasaw Tribal Legislature

Dean McManus

Secretary

Chickasaw Tribal Legislature

Concur:

Bill Anoatubby

Bill Anoatubby, Governor
The Chickasaw Nation

Date:

JUN 20 2003

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Explanation: This resolution provides amendments to Sections 16-208 and 16-210 so that they accurately reflect position titles provided by Amendment V. This resolution also corrects formatting errors. The Supreme Court participated in the preparation of this resolution.

Requested By: D. Scott Colbert, Chairman
Court Development Ad Hoc Subcommittee

Presented By: D. Scott Colbert, Chairman
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